

CARLSTAR GROUP LLC f/k/a	:	
CARLISLE TRANSPORTATION PRODUCTS, INC., and	:	
CTP TRANSPORTATION PRODUCTS, LLC,	:	
	:	
Complainants,	:	
	:	
v.	:	Docket No. 17-08
	:	
	:	
UTi, UNITED STATES, INC.,	:	
UTi, UNITED STATES, LLC, and	:	
DSV AIR & SEA, INC.	:	
	:	
Respondents.	:	
	:	

UTi, United States, LLC and DSV Air & Sea, Inc. (“DSV”), successors in interest to UTi, United States, Inc., (“UTi”) (collectively, “Respondents”), by and through Respondents’ attorneys, respectfully submit this Motion to Strike (“Motion”). As permitted by Federal Maritime Commission (“Commission” or “FMC”) regulations set forth in 46 C.F.R. § 502.12, and in accordance with the FMC’s directive in the Amended Order Enlarging Time to File Reply Memorandum and Order Directing Complainants to Supplement Brief Responding to Respondents’ Motion to Dismiss (“Amended Order”), issued on January 2, 2018, Respondents hereby move to be stricken from the record the Surreply (“Surreply”), filed on January 31, 2018 by Carlstar Group LLC f/k/a Carlisle Transportation Products, Inc. and CTP Transportation Products, LLC’s (collectively, “Carlstar” or “Complainants”). The contents and scope of

Complainants' Surreply are in direct violation of the instructions to Complainants set forth in the Amended Order.

This Motion is governed by FMC Rule 12, which provides for the applicability of the Federal Rules of Civil Procedure (FRCP) to this proceeding, to the extent that they are consistent with sound administrative practices, for situations which are not covered by a specific Commission rule. In this case, Rule 12(f) of the FRCP states that a court may strike from a pleading "any redundant, immaterial, impertinent, or scandalous matter...on motion by a party...within 21 days after being served with the pleading." FRCP 12(f). This Motion is timely filed.

ARGUMENT

It is Respondents' understanding that the Amended Order permitted Complainants to file a Surreply, subject to the following parameters:

On or before January 31, 2018, Complainants may file a sur-reply to Respondents' reply **limited solely to the issue of the operative date of the statute of limitations and to respondents' reply to complainants' supplemental brief.**

Amended Order (bold in original). Respondents understand that the Surreply was not required but instead was an optional submission that Complainants could file so long as the Surreply was subject to the scope emphasized above.

In their Surreply Complainants failed to address the statute of limitations issue. More significantly, Complainants went completely beyond the scope of the issues addressed in Respondents' Reply, raising several new arguments that had not been under discussion and citing to several new sections of FMC rules and regulations. See Surreply at *2 (alleging new claims under to 46 C.F.R. § 515.31(e) and (i)); Surreply at *3 (alleging new claims under 46 C.F.R. § 515.33); Surreply at *3–5 (alleging for the first time that the Agreement is properly classified

as an NVOCC Service Arrangement (NSA) and setting forth a variety of new claims pursuant to that categorization); Surreply at *5 (alleging the possibility of the rates charged being higher than the tariffs and alleging that UTi withheld them from Complainants); Surreply at *7 (alleging new speculative facts that UTi invoices contained “false information”).

The unfortunate effects of Complainant’s decision to contravene the Amended Order are clear. Respondents have no opportunity to address these new arguments, which are specious and misleading. Respondents object to Complainants’ continued attempts to espouse speculative and unsupported factual allegations and to try their hand at any legal claims predicated on these allegations, in a transparent search to find a coherent legal argument against Respondents. Complainants have at times claimed that Respondents overcharged them per the Agreement, that the Agreement was a service contract, and, now, that the agreement was a NSA but *also* that Carlstar *may* have been overcharged per a tariff and that UTi falsified invoices. Complainants’ attempts to change their factual assertions and legal arguments with each successive filing is clear evidence of a fishing expedition with no real legal basis.

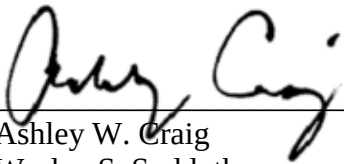
With the understanding that the present Motion is a non-dispositive motion governed by FMC Rule 71, Respondents have conferred in good faith with Complainants regarding this Motion prior to filing, to determine whether there is any opposition to the relief sought. This exchange occurred on February 14, 2018, and established that Complainants oppose the Motion.

CONCLUSION

For the reasons set forth above, Respondents respectfully request that this Motion to Strike Complainants' Surreply be granted.

Dated: February 14, 2018

Respectfully submitted,

A handwritten signature in black ink, appearing to read "Ashley W. Craig", is written over a horizontal line.

Ashley W. Craig
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CERTIFICATE OF SERVICE

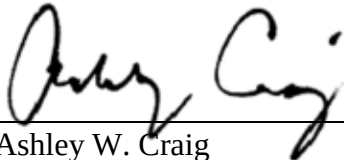
I hereby certify that I have this day served the foregoing documents upon all parties noted below by mailing via electronic mail a copy to each such person:

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Counsel for Complainants

Dated at Washington, D.C. this 14th day of February 2018.



Ashley W. Craig
Counsel for Respondents